

TENTATIVE RULINGS FOR July 13, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department R-14 at SScott@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling the department at 909-285-3717. If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

GUANGDI LYU
v.
YOULAND INC. et al.

CIVRS2504046p

Meet and Confer

The parties did not comply with their obligation under Code of Civil Procedure section 2016.040, to meet in person, by telephone, or by videoconference in a reasonable good faith effort to resolve the issues presented by these motions. The parties only traded emails and letters in their efforts to meet and confer. (Kent Exhs. 4, 5, 6.)

In opposition to Youland's motions, Plaintiff argues that the parties' meet and confer efforts were insufficient. Plaintiff asserts that Youland did not respond to issues raised in her effort to meet and confer and that she is still willing to confer with Youland in an effort to resolve the issues presented. (Lui Decl. ¶ 11.)

Given that the parties have not complied with their meet and confer obligations and Plaintiff's opposition discusses that with additional efforts a resolution may be had, the Court continues the hearing and orders the parties to adequately meet and confer in person, by telephone,

or by videoconference. The Court further orders that at least 16 court days before the continued hearing, the parties file a joint declaration outlining their meet and confer efforts and setting forth the issues that remain.

CONCLUSION

The Court Rules as Follows:

The hearing on Defendant Youland's motions for protective orders (all three motions) is continued to **October 5, 2026 at 9:00 a.m.**

The parties are ordered to meet and confer in person, by telephone, or by videoconference. If the parties are unable to resolve their differences, they are ordered to file at least 16 court days before the continued hearing a joint declaration outlining their meet and confer efforts and setting forth the issues that remain.

Defendant's counsel is ordered to provide notice.

IT IS SO ORDERED.